

SECTION V: HYPOTHETICAL CASES (30%)

5.1. HYPOTHETICAL CASE 1 (20 %)

In a suit between A and B for breach of contract, the court held that A is liable to pay B the sum of Birr 50, 000 (Fifty Thousand). B filed for the execution of this decree, and the court has ordered the attachment of a house. The house is owned by A and his two brothers, C and D, as a result of inheritance from their deceased parents. C and D were not party to the contract that was concluded between A and B the breach of which resulted in A's liability. Moreover, the contract between A and B is not related with debts of the inheritance.

The court ordered the sale of the house by public auction; and it further ordered that A's share of the proceeds shall be paid to B instead of being given out to A. C and D think that the court's order affects their rights. They also have sentimental attachment to the house in which they were born and lived with their parents. They do not want to lose the family home to a third party who will buy it on auction. Nor do they want an alien third party to jointly own the family house with them. C and D have come to you to seek legal advice.

What procedural remedy or remedies do they have under the Civil Procedure Code of Ethiopia?

5.2. HYPOTHETICAL CASE 2 (10 %)

Assume you are a lawyer for Ato Obang who is charged for committing an act of intentional aggravated homicide violating Art 539 (1) (a) of the FDRE Criminal Code. Obang denied committing of this crime. Hence, the court ordered the public prosecutor to produce its evidence. However, police could not find the five witnesses of the public prosecutor named and listed in the charge. After learning that these witnesses are hiding themselves and evading the police officer's attempt to find and produce them at three occasions, the prosecutor moved to adduce the testimony of these witnesses recorded by the investigative police officer during pre-trial investigation.

As a lawyer for Obang, what objections would you raise against this motion of the prosecutor and what legal basis would you invoke in support of your objections?

SECTION III: SHORT ANSWERS (15 %)

Give a short answer to the following questions

- 3.1. The right against self incrimination or the right to remain silent during criminal investigation imposes a duty on the investigator. What is this duty? (3 %) About two lines
- 3.2. Identify two possible legal consequences against a person who makes false criminal accusations against an innocent person. (3 %) About two lines
- 3.3. List three safeguards that minimize the adverse impact of search and seizure. (3 %) About two lines
- 3.4. State the potential outcomes of an appeal in criminal Cases (6 %) About Six lines

SECTION IV: ESSAY TYPE QUESTIONS (20 %)

- 4.1. Identify and discuss two problems that you think exist because of absence of fixed, binding rules of private international law in Ethiopia. (10%)
- 4.2. According to Art 54 of the Criminal Procedure Code, "A warrant of arrest shall only be issued where *the attendance of a person before the court is absolutely necessary and cannot otherwise be obtained.*" Explain these two cumulative requirements. (10 %)

SECTION II: MATCHING (10 %)
Match each item under Column "A" with its best corresponding item from Column "B".

Column A

1. Venue
2. Negotiation
3. Preponderant degree of proof
4. Confrontation
5. Evasive denial
6. Pretrial publicity
7. Jury
8. Search and seizure
9. The fruit of a poisonous tree
10. Connecting factor

Column B

- A. Proof that is more likely true than not.
- B. Affects the right to privacy and property
- C. A part of cross-examination
- D. Alternative dispute resolution
- E. Common law tradition
- F. May amount to admission in civil cases
- G. Exclusionary rule
- H. Domicile/ nationality
- I. Burden of persuasion
- J. Location for hearing
- K. Witness protection
- L. Pretrial detention
- M. Right to an impartial tribunal affected
- N. Wider prosecutorial discretion
- O. Immunity from prosecution

22. Which of the following is the most appropriate answer about pre-trial lawyering:

- A. It refers to all tasks that precede the decision of the court.
- B. It involves statement of defence.
- C. It involves fact and legal investigation.
- D. It involves cross examination.
- E. It involves the submission of mitigating circumstances before the court passes a sentence.

23. One of the following statements is the most relevant with regard to the terms of client-attorney relationship:

- A. Interview with witnesses
- B. Mutual obligations of both the lawyer and the client
- C. Appellate procedures
- D. Identification of jurisdiction
- E. Identification of venue

24. One of the following is normally an aspect of a trial process:

- A. Litigation after court's decision on preliminary objections
- B. Drafting pleadings
- C. Litigation planning
- D. Fact and legal investigation
- E. Case evaluation and designing litigation strategy

25. Choose the most appropriate course of action in relation to gathering facts if a client comes to a lawyer's office and narrates an event:

- A. All facts in the narration are relevant to the case and the lawyer should take into account every detail of the narration.
- B. All facts that occurred before the day of the event are not relevant.
- C. The relevant facts are the ones that prove or disprove the issue/s involved.
- D. Facts that deal with the circumstances rather than the event are not relevant.
- E. All facts that occur after the event are not relevant

18. Which one of the following statements is **invalid**?

- A. Recognition and enforcement are technically two separate notions.
- B. Ethiopian law contains no provisions pertaining to requirements for the recognition of foreign judgments.
- C. Under Ethiopian law, prior to making a foreign judgment effective, a domestic judgment must be made to that effect.
- D. Under Ethiopian law, a foreign judgment is enforced only after the satisfaction of the conditions for execution and after an exequatur, i.e., written declaration of enforceability is granted.
- E. Under Ethiopian law, once permission to execute is granted, a foreign judgment has the same effect as a judgment rendered by an Ethiopian court.

19. Which of the following **does not** form part of the subject matter of Conflict of laws?

- A. Material jurisdiction.
- B. Choice of law.
- C. Recognition of foreign judgments.
- D. Judicial jurisdiction
- E. Recognition of foreign arbitral awards.

20. Which of the following is the most appropriate answer with regard to the means by which a court may take as proven certain facts without adducing evidence ;

- A. Judicial notice of the law.
- B. Silence.
- C. Presumption of fact.
- D. Irrebuttable presumption.
- E. Rebuttable presumption.

21. Normally shift (reversal) of burden of proof relates to

- A. Evidential burden of proof
- B. Legal burden of proof
- C. Presumption of innocence
- D. Irrebuttable presumption of law
- E. Judicial notice

15. Under the F.D.R.E Constitution, the power to enact conflict of laws rules is given expressly to:
- A. Regional states.
 - B. The Federal Parliament.
 - C. Neither regional states nor the Federal Parliament.
 - D. The House of Federation.
 - E. The Addis Ababa City Administration.
16. Which one of the following statements is **incorrect**?
- A. It is generally accepted that the law that governs the formal validity of marriages is *lex loci celebrationis*.
 - B. The law that in principle governs contractual relationships is the law of the state chosen by the parties.
 - C. The law that in principle governs property matters is the law of the country where contract in relation to the property is concluded.
 - D. The law that in principle governs business organizations is either the law of country of incorporation or country of actual operation of the entities.
 - E. The law that governs personal status and capacity is either the law of domicile or nationality of the person concerned.
17. Which of the statements is **invalid** about public policy and foreign law?
- A. If application of a foreign law runs contrary to accepted norms, morality and accepted sense of justice of a forum state, its application may be differed.
 - B. Drawing the boundaries of public policy is an easy process.
 - C. Public policy provides an exception to the normal operation of choice-of-law rules.
 - D. A mere difference between forum law and foreign law does not imply violation of forum public policy and does not bar a foreign law from application.
 - E. A court that has rejected the application of a foreign law on public policy reasons should either apply forum law or dismiss the case.

12. Which of the following describes the status of conflict of laws in Ethiopia?
- A. Whenever courts are faced with cases containing a foreign element, they invariably dismiss them.
 - B. Ethiopia had never proclaimed choice of law rules in its history.
 - C. Diversity jurisdiction or intra-state conflict cases cannot arise in Ethiopia.
 - D. There is currently no compelling reason that calls for enactment of binding conflict of laws rules.
 - E. Scattered provisions in the various codes of the Country provide sufficient answers to conflicts problems.

13. Which one of the following is **true** regarding status of foreign law?

- A. The common law system considers foreign law as a law.
- B. Continental law countries consider foreign law as a fact.
- C. Continental law courts take judicial notice of rules of foreign law.
- D. Common law legal system courts ascertain foreign law *ex officio*.
- E. In the common law legal system, parties may not be required to plead and prove foreign law.

14. Which one of the following can judges do under the present Ethiopian civil and criminal justice system?

- A. Putting any question to witnesses of parties at any stage of examination of such witnesses when they find it necessary for the just decision of cases at their hand.
- B. Cross-examining witnesses of parties with a view to facilitate the search of truth.
- C. Not calling any witness who is not listed as a witness of either the plaintiff or defendant.
- D. Being passive actors during trial.
- E. Not calling any witness before the witnesses of the plaintiff and the defendant are heard.

8. A pre-trial process in a civil proceeding does not normally involve in :

- A. Framing of issues
- B. Ruling on preliminary objections
- C. Appearance of parties
- D. Examination of parties
- E. Hearing of evidence on the substance of the dispute

9. Which one of the following situations renders a criminal charge invalid thereby necessitating its amendment?

- A. Failure to mention the identity of the victim of the crime in the charge.
- B. Failure to attach a list of evidence with the charge.
- C. Including more than one count in the criminal charge.
- D. Failure to as much as possible describes the circumstances of the crime in the words of the law defining the crime.
- E. Charging a natural person with a corporate entity as a co-offender.

10. Which one of the following is **true** about preliminary inquiry?

- A. It is a process where prosecution witnesses are examined in the presence of the suspect.
- B. It is a mandatory process regarding grave offences.
- C. The court of preliminary inquiry may convict or acquit because prosecution witnesses are examined in the presence of the accused.
- D. The accused is not allowed to cross examine prosecution witnesses because this is not a trial proper.
- E. It is a process conducted only regarding crimes punishable with rigorous imprisonment.

11. What happens when a criminal charge is filed with the court without jurisdiction?

- A. The court refers it to another court having jurisdiction.
- B. The court continues to entertain it if the court is a higher court.
- C. The court will strike out the charge.
- D. The court will order the prosecutor to file it to the court having jurisdiction.
- E. The court asks for direction from a higher court.

4. Which one is the correct statement about joinder of claims in Ethiopia?
- A. Federal and state matters cannot be joined in a single suit to be litigated before federal courts.
 - B. Federal and state matters cannot be joined in a single suit to be litigated before state courts.
 - C. Federal and state matters can be joined in a single suit but can only be litigated before state courts.
 - D. Rules of joinder of claims are not subject to the law of jurisdiction.
 - E. It is compulsory for the court to order separate trial whenever claims are joined in a single suit.

5. One of the following is **not** a way of pleading not guilty by the accused
- A. keeping silent when asked to plead.
 - B. admitting the crime with reservation.
 - C. pleading 'not guilty'.
 - D. amending one's guilty plea into a 'not guilty' plea.
 - E. telling the court that she objects the criminal charge

6. Which one is a special criminal procedure among the following?
- A. witness examination in a preliminary enquiry.
 - B. remand/bail procedure.
 - C. private prosecution.
 - D. petty offence procedure.
 - E. appellate procedure .

7. The correct hierarchy of services of summons is represented by:
- A. Personal service→ substituted service→ constructive service
 - B. Constructive service→ personal service→ substituted service
 - C. Personal service→ constructive service→ substituted service
 - D. Constructive service→ substituted service→ personal service
 - E. Substituted service→ personal service→ constructive service

SECTION I: MULTIPLE CHOICE (25 %)

CHOOSE THE BEST ANSWER AND WRITE THE LETTER OF YOUR CHOICE ON A SEPARATE ANSWER SHEET APPENDED TO THIS EXAM BOOKLET.

1. Which one of the following **does not** fall within the province of Law of Evidence?
 - A. Determination of the party who is personally or vicariously liable.
 - B. Protection of evidentiary privileges.
 - C. Regulation of types of evidence which may or may not be admissible in litigation.
 - D. Compellability of witnesses.
2. Based on "Determination of standard of proof" ; The best way to identify whether a specific crime falls under the category of crimes punishable upon complaint is:
 - A. to look into the extent of penalty it entails
 - B. to consult with the complainant herself
 - C. to see if the law defining the crime so provides
 - D. to find if the offence is either a petty offence or a crime
 - E. by looking at the definition given by the Criminal Procedure Code to an offence upon complaint.
3. Which one of the following **cannot** be legitimately done to secure the attendance of the accused at his trial?
 - A. summoning the accused directly.
 - B. bench warrant for the police to arrest and bring the accused to court.
 - C. publication of the summons in a newspaper.
 - D. summons to the guarantor to bring the accused to court when the accused failed to appear.
 - E. telling the accused in person, while in court, the adjourned date.

**NATIONAL EDUCATIONAL ASSESSMENT AND
EXAMINATIONS AGENCY (NEAEA)**

**NATIONAL EXIT EXAM FOR STUDENTS OF
ETHIOPIAN LAW SCHOOLS
2014/2015 ACADEMIC YEAR**

Part III: Procedural Laws and Skills Courses

02 April 2015

Time allowed: 3 (Three) Hours

INSTRUCTIONS

1. THE EXAM HAS FIVE SECTIONS. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. LAWS THAT CAN BE BROUGHT TO THE EXAM ROOM ARE: CLEAN COPIES OF THE CIVIL PROCEDURE CODE, THE CRIMINAL PROCEDURE CODE AND THE FEDERAL COURTS ESTABLISHMENT PROCLAMATION WHICH CANNOT BE LENT TO NOR BORROWED FROM OTHER STUDENTS.
3. SUPPORT YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS WHENEVER APPROPRIATE.
4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM PAPER.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE LEGIBLY.
7. SWITCH OFF YOUR MOBILE PHONE.

DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.